# The Horner family: land, war, and remembrance

In June 1860, a census enumerator recorded Spencer Horner as a 52-year-old farmer in Mulberry Township, Johnson County, Arkansas. Permelia appears immediately below him, followed by five younger people. The page places a household in view before the war: names, ages, birthplaces, work, and reported property. Four years later, a family account describes Spencer's killing and the shooting of William Riley Horner, identified in the archive's family reconstruction as his son. William's grave marker gives his death as 10 August 1864. These records bring us close to a family's losses, although they preserve different kinds of evidence [S01, S03, S04].

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## A household before the war

The 1860 population schedule gives Spencer's occupation as farmer and his birthplace as Tennessee. It reports $1,500 in real estate and $1,500 in personal estate. Permelia is on line 2 of dwelling 698, family 699. The schedule does not state relationships: her identification as Spencer's wife comes from the archive's family reconstruction, rather than a relationship column on this page [S01, S04/S07].

Two dates matter. The printed census question asks who lived in the household on **1 June 1860**. The page heading says the enumerator recorded it on **20 June 1860**. A reference date and the date of recording can differ. Ages and values are information reported through an administrative record, not a complete account of a family's life.

The property columns show reported values, not a list of possessions. They cannot tell us whether the family kept money hidden or what later attackers wanted. Nor does the personal-estate total by itself establish whether Spencer enslaved anyone. That question requires separate investigation, including the 1860 slave schedule and other relevant records; this edition makes no finding about it.

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## The land record and its Choctaw connection

Three years before that census, a federal patent dated **1 April 1857** named Spencer Horner as an assignee: a recipient through assignment of a prior claim. The document identifies **Choctaw Certificate No. 19B**, in the name of Canne Chubbee, deceased, and names Co-cha-tubbee as a representative. It describes a total of 160 acres in sections 19 and 22, Township 12 North, Range 24 West, processed through the Fayetteville Land Office [S02].

The patent explicitly connects the certificate to claims under the Treaty of Dancing Rabbit Creek and later federal acts. That connection belongs in the history of this land. The Choctaw Nation describes the 1830 treaty in the context of forced removal and provisions for Choctaw people seeking to remain in Mississippi [C1]. Spencer's patent records a later assignment within that claims history. It does not explain how this particular assignment was arranged, what Spencer paid, or what the claim meant to Canne Chubbee's family.

Those are questions about people as well as paperwork. Further research should follow the original claim and its representatives, rather than treating the Choctaw names as incidental to Spencer's title. Assignment of a certificate is not proof that Spencer was Choctaw. It also does not establish a precise modern house site. The four tracts and their later conveyances need to be traced separately.

## The family and the reported attack

The later narrative attributed to Eva Horner in 1942 describes Spencer going toward the house, surrendering to approaching men, and being shot. It describes William Riley running away and receiving a head wound [S04]. In that family account, Spencer was killed and William was also a victim of the attack. The complete original manuscript has not yet been authenticated; the archive currently preserves published excerpts and later reconstruction.

The account also places two young Acord boys, John Samuel and Christopher Columbus, in the family setting. The archive identifies them as Spencer's grandsons through Elizabeth Horner Acord and Francis Marion Acord. It reports that both parents had died earlier in 1864. These relationships and the boys' presence are part of the family reconstruction, awaiting verification against the underlying originals. Christopher's reported age varies, so no exact age is chosen here [S04/S07].

The date **2 August 1864 is a working date, source not located** in the materials verified for this edition. William's marker instead records his death on **10 August 1864** [S03]. One possible explanation is that an injury preceded a later death, but these materials do not establish that sequence. Spencer's exact death date also needs separately dated evidence. The two dates must not be made to corroborate one another by assumption.

## Remembering the deaths

William's marker attributes the killing to parties known to his family. It preserves a public accusation and a death date. It does not supply the killers' names or tell us whether an investigation, inquest, or prosecution followed. Its installation date and the date and maker of the surviving photograph are unknown [S03].

The 1942-attributed narrative continues beyond the attack. It tells of reprisals associated with Dr. John Turner Horner and reports seventeen of twenty attackers killed. That is a claim made by the family account, not an independently verified casualty total [S04]. The published excerpt states: “One time they left Jess Wilson to hold their horses when they went to fight” [S04]. The surrounding published passage does not identify “they” or specify which fight is meant.

Family memory gives this history its human urgency: people tried to explain loss, identify responsibility and tell later generations what had happened. Examining how those stories were recorded is part of preserving them. The next task is to compare the complete account with dated records, not to fill its gaps with a more dramatic narrative.

## A short timeline

| Date | Record or reported event | Source / status |
|---|---|---|
| 1 April 1857 | Federal patent to Spencer as assignee, using Choctaw Certificate No. 19B | Examined image [S02] |
| 1 June 1860 | Reference date specified on the population schedule | Printed heading [S01] |

| Date | Record or reported event | Source / status |
|---|---|---|
| 20 June 1860 | Enumeration date written on the Spencer household page | Examined heading [S01] |
| Earlier in 1864 | Deaths of Elizabeth and Francis reported in the archive's family reconstruction | Original supporting records still to be checked [S04/S07] |
| 2 August 1864 | Working date for the reported attack | Source not located in verified materials; exact attack and Spencer death dates unresolved |
| 10 August 1864 | William Riley's death date on the marker | Memorial reading [S03]; does not by itself date the attack |
| 1942, attributed | Recording of the family narrative associated with Eva Horner | Complete original and transmission history unverified [S04] |

## Who's who

| Person | Place in this history | Evidence and status |
|---|---|---|
| Spencer Horner | Farmer; patent assignee; victim of a reported wartime killing | Census and patent images establish entries in his name [S01–S02]; account of killing is later family testimony [S04] |
| Permelia | Appears on census line 2; identified as Spencer's wife in the family reconstruction | Entry examined [S01]; relationship needs separately cited family records [S04/S07] |
| William Riley Horner | Identified as Spencer's son; victim described in the family account | Relationship and attack account [S04/S07]; marker gives death 10 August 1864 [S03] |
| Dr. John Turner Horner | Identified as Spencer's son and William's brother; central figure in the later reprisal account | Family reconstruction/testimony [S04/S07]; formal Union enlistment unresolved |
| Elizabeth Horner Acord | Identified as Spencer's daughter and mother of the Acord boys | Family reconstruction [S04/S07]; supporting vital/family records to be checked |
| Francis Marion Acord | Identified as Elizabeth's husband and the boys' father | Family reconstruction [S04/S07]; individual records require verification |
| John Samuel and Christopher Columbus Acord | Identified as young grandsons whose childhood is connected to the attack | Later family account/reconstruction [S04/S07]; Christopher's age disputed |

Here, S07 means a research register of leads, not an authenticated original record. The table makes the family account understandable without presenting every relationship as independently proved.

# Questions the archive is pursuing

Which dated records can establish the attack and Spencer's death? What do complete military, pension and court records say about the people and events? Can the original family manuscript be located, dated and compared with later retellings? What became of the Choctaw claim and of each tract after the patent? What records establish the children's family relationships and later lives?

Location research is also **reopened**: historical tracts, reported coordinates and present parcels have not been reconciled. Location mapping remains withdrawn; this edition supplies no directions or permission to enter land. Details of official appointments, service-record leads and disputed identities belong in the research register.

# Read the evidence

S01: census image and cautious transcription. S02: federal patent associated with Choctaw Certificate No. 19B. S03: William Riley marker photograph. S04: family-account excerpts attributed to 1942. S05–S06: additional pension-ledger and survey sources. S07: unverified military, pension and family-record leads. The annotated catalog gives provenance, uses and limits for each.

The patent's certificate number is visible; its original BLM/GLO accession and catalog fields still need independent checking. The census's original series, roll and provider image ID also remain unreconciled. These identification tasks are recorded with the sources rather than treated as settled citations.

C1: Choctaw Nation of Oklahoma, The Treaty that Forever Changed our Chahta People's Story. Tribal historical account, consulted 17 October 2026; context for removal and treaty provisions, not evidence of the terms of Spencer's particular assignment.

## About this edition

### Reader edition | v21.2 | 17 October 2026

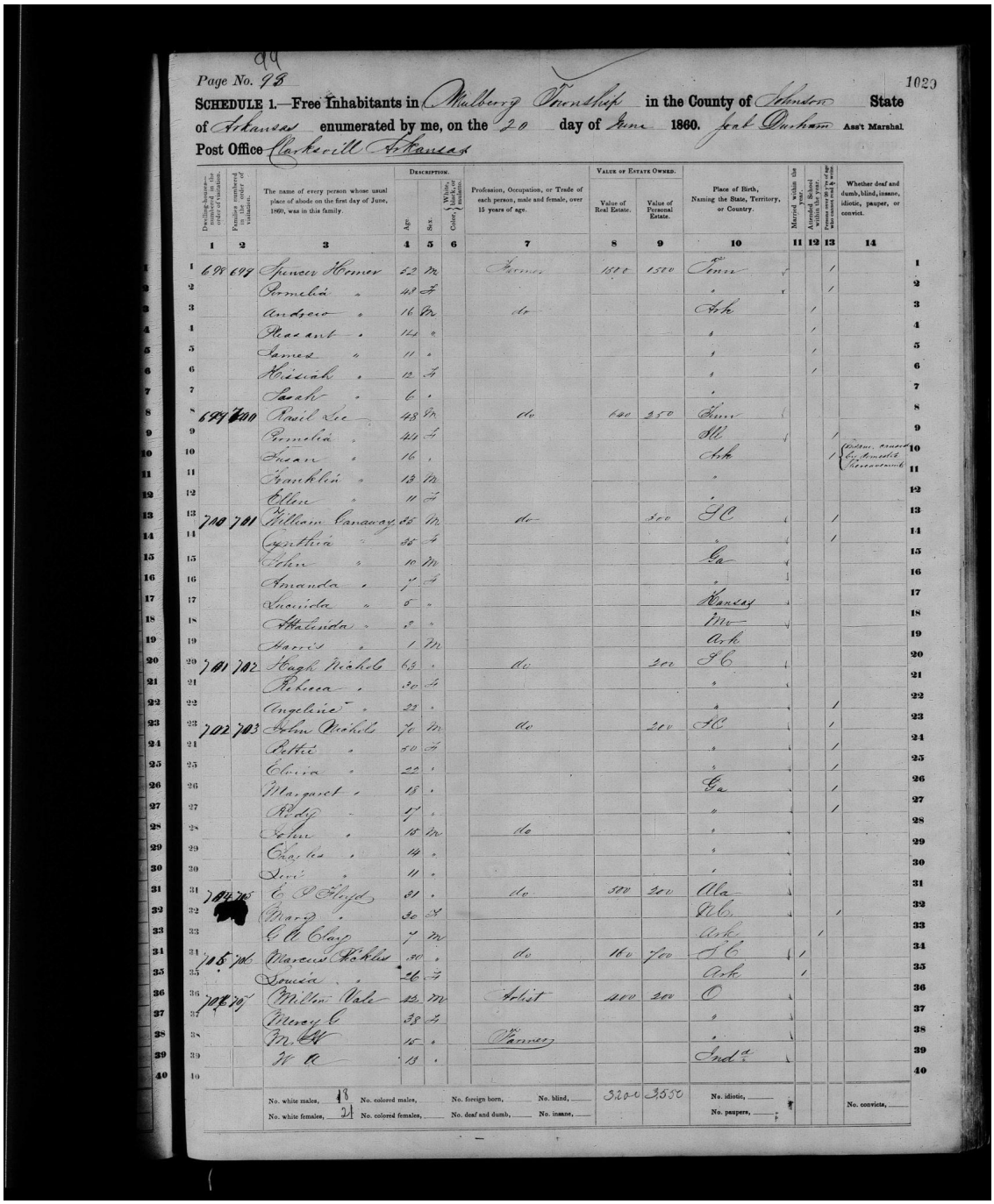
Daniel Bret Lingar assembled this archive to investigate the family's history. Source numbers identify the records or attributed accounts behind each part. The correction register records withdrawn claims and changes to earlier editions; the research register records what remains unresolved. Source limits that affect the meaning of an event or identification remain beside that claim in the narrative.

Printable reader edition · Classroom source pack · Grant discussion materials.

The superseded detailed edition and original PDF in Git history retain earlier wording for correction history. Source-specific rights apply; possession of a photograph or manuscript is not a blanket reproduction license.

# S01: 1860 census, full household page

Readable details and partial transcriptions are supplied in the companion classroom source pack.



Page No. 98 — 1023

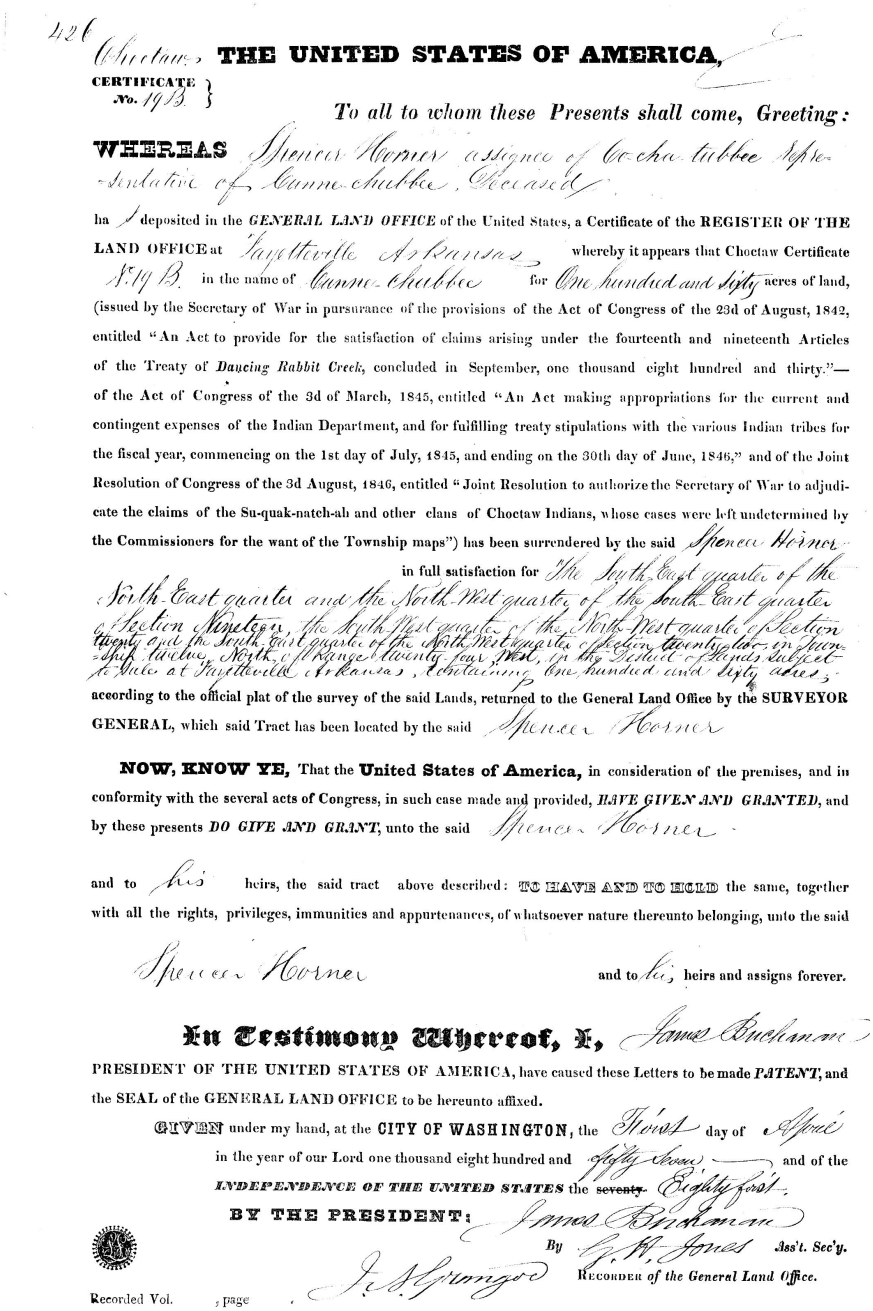
SCHEDULE 1.—Free Inhabitants in Mulberry Township in the County of Johnson State of Arkansas enumerated by me, on the 20 day of June 1860. Joel Durham Ass't Marshal.

Post Office Clarksville Arkansas

| Dwelling-houses—numbered in the order of visitation. | Families numbered in the order of visitation. | The name of every person whose usual place of abode on the first day of June, 1860, was in this family. | Description: Age. | Sex. | Color, white, black, or mulatto. | Profession, Occupation, or Trade of each person, male and female, over 15 years of age. | Value of Estate Owned: Value of Real Estate. | Value of Personal Estate. | Place of Birth, Naming the State, Territory, or Country. | Married within the year. | Attended School within the year. | Whether unable to read or write. | Whether deaf and dumb, blind, insane, idiotic, pauper, or convict. |
|---|---|---|---|---|---|---|---|---|---|---|---|---|---|
| 1 | 2 | 3 | 4 | 5 | 6 | 7 | 8 | 9 | 10 | 11 | 12 | 13 | 14 |
| 698 | 698 | Spencer Homer | 52 | M | | Farmer | 1500 | 1500 | Tenn | | | 1 | |
| | | Pamelia " | 48 | F | | | | | " | | | 1 | |
| | | Andrew " | 16 | M | | do | | | Ark | | 1 | | |
| | | Pleasant " | 14 | " | | | | | " | | 1 | | |
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| | | Hiriah " | 12 | F | | | | | " | | 1 | | |
| | | Sarah " | 6 | " | | | | | " | | | | |
| 699 | 699 | Basil Lee | 48 | M | | do | 640 | 250 | Tenn | | | | |
| | | Pamelia " | 44 | F | | | | | Ill | | | 1 | |
| | | Susan " | 16 | " | | | | | Ark | | | 1 | Can't read & write |
| | | Franklin " | 13 | M | | | | | " | | | | |
| | | Ellen " | 11 | F | | | | | " | | | | |
| 700 | 700 | William Canaway | 55 | M | | do | | 300 | SC | | | 1 | |
| | | Cynthia " | 38 | F | | | | | " | | | 1 | |
| | | John " | 10 | M | | | | | Ga | | | | |
| | | Amanda " | 7 | F | | | | | " | | | | |
| | | Lucinda " | 5 | " | | | | | Kansas | | | | |
| | | Atalanda " | 3 | " | | | | | Mo | | | | |
| | | Harris " | 1 | M | | | | | Ark | | | | |
| 701 | 701 | Hugh Nichols | 63 | " | | do | | 200 | SC | | | | |
| | | Rebecca " | 50 | F | | | | | " | | | | |
| | | Angeline " | 22 | " | | | | | " | | | 1 | |
| 702 | 702 | John Nichols | 70 | M | | do | | 200 | SC | | | 1 | |
| | | Betsy " | 50 | F | | | | | " | | | 1 | |
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| | | Margaret " | 18 | " | | | | | Ga | | | 1 | |
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| 704 | 704 | C. P. Floyd | 21 | " | | do | 500 | 200 | Ala | | | | |
| | | Mary " | 20 | F | | | | | NC | | | 1 | |
| | | G. W. Clay | 7 | M | | | | | Ark | | 1 | | |
| 705 | 705 | Marcus Hobbs | 30 | " | | do | 160 | 700 | SC | 1 | | | |
| | | Louisa " | 26 | F | | | | | Ark | | 1 | | |
| 706 | 706 | Milton Vale | 42 | M | | Artist | 400 | 200 | O | | | | |
| | | Mercy C. " | 38 | F | | | | | " | | | | |
| | | M. W. " | 15 | " | | Farmer | | | " | | | | |
| | | H. A. " | 13 | " | | | | | Ind. | | | | |
| | | | | | | | | | | | | | |
| | | No. white males, 43 No. colored males, ___ No. foreign born, ___ No. blind, ___ | | | | | 3200 | 3550 | No. idiotic, ___ | | | | No. convicts, ___ |
| | | No. white females, 21 No. colored females, ___ No. deaf and dumb, ___ No. insane, ___ | | | | | | | No. paupers, ___ | | | | |

# S02: 1857 patent, Choctaw Certificate No. 19B

Readable details and partial transcriptions are supplied in the companion classroom source pack.



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Choctaw THE UNITED STATES OF AMERICA,

CERTIFICATE No. 19B

*To all to whom these Presents shall come, Greeting:*

WHEREAS Spencer Horner assignee of Cocha tubbee Representative of Cumme chubbee, Deceased

has deposited in the *GENERAL LAND OFFICE* of the United States, a Certificate of the REGISTER OF THE LAND OFFICE at Fayetteville Arkansas whereby it appears that Choctaw Certificate No. 19 B. in the name of Cumme Chubbee for One hundred and Sixty acres of land, (issued by the Secretary of War in pursurance of the provisions of the Act of Congress of the 23d of August, 1842, entitled "An Act to provide for the satisfaction of claims arising under the fourteenth and nineteenth Articles of the Treaty of *Dancing Rabbit Creek*, concluded in September, one thousand eight hundred and thirty."— of the Act of Congress of the 3d of March, 1845, entitled "An Act making appropriations for the current and contingent expenses of the Indian Department, and for fulfilling treaty stipulations with the various Indian tribes for the fiscal year, commencing on the 1st day of July, 1845, and ending on the 30th day of June, 1846," and of the Joint Resolution of Congress of the 3d August, 1846, entitled "Joint Resolution to authorize the Secretary of War to adjudicate the claims of the Su-quak-natch-ah and other clans of Choctaw Indians, whose cases were left undetermined by the Commissioners for the want of the Township maps") has been surrendered by the said Spencer Horner in full satisfaction for The South East quarter of the North East quarter and the North West quarter of the South East quarter of Section Nineteen, the South West quarter of the North West quarter of Section twenty and the South East quarter of the North West quarter of Section twenty-nine in Township Twelve North of Range twenty four West, in the District of Lands subject to Sale at Fayetteville Arkansas, containing one hundred and Sixty acres; according to the official plat of the survey of the said Lands, returned to the General Land Office by the SURVEYOR GENERAL, which said Tract has been located by the said Spencer Horner

**NOW, KNOW YE,** That the **United States of America,** in consideration of the premises, and in conformity with the several acts of Congress, in such case made and provided, *HAVE GIVEN AND GRANTED*, and by these presents *DO GIVE AND GRANT*, unto the said Spencer Horner

and to his heirs, the said tract above described: TO HAVE AND TO HOLD the same, together with all the rights, privileges, immunities and appurtenances, of whatsoever nature thereunto belonging, unto the said

Spencer Horner and to his heirs and assigns forever.

**In Testimony Whereof, I,** James Buchanan PRESIDENT OF THE UNITED STATES OF AMERICA, have caused these Letters to be made *PATENT*, and the SEAL of the GENERAL LAND OFFICE to be hereunto affixed.

GIVEN under my hand, at the CITY OF WASHINGTON, the Firest day of April in the year of our Lord one thousand eight hundred and Fifty Seven and of the *INDEPENDENCE OF THE UNITED STATES* the ~~seventy~~ Eighty First.

BY THE PRESIDENT: James Buchanan

By G. W. Jones Ass't. Sec'y.

J. S. Gromgoe RECORDER *of the General Land Office.*

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